

ZAMORA v. CLAPP

16CV41649

PLAINTIFF'S MOTION TO AMEND JUDGMENT

The Court of Appeal's Remittitur to the trial court was filed October 2, 2023, the plaintiff's motion for attorney's fees was timely filed October 27, 2023, and the order on plaintiff's motion for attorney's fees and defendant's motion to tax costs and strike reply Declarations was entered December 18, 2023.

Plaintiff now moves to amend the August 31, 2021, Judgment to conform to the Court's December 18, 2023, Order.

The moving papers did not include the required language of Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285.

Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that the unopposed Motion to Amend Judgment though set on Law and Motion calendar is akin to an administrative, or clerical, matter, and

inclusion of notice in motion is excused. (See California Rules of Court (CRC), rule 3.1700(b)(4) "After the time has passed for a motion to strike or tax costs or for determination of that motion, the clerk must immediately enter the costs on the judgment".)

An amended judgment that merely adds costs, attorney's fees, or interest is not a substantial modification, and the time to appeal is not affected. (*Torres v. City of San Diego* (2007) 154 Cal.App.4th 214, 222; *Amwest Sur. Ins. Co. v. Patriot Homes, Inc.* (2005) 135 Cal.App.4th 82, 84.)

The Court **GRANTS** Plaintiff's Motion to Amend Judgment.

The Clerk shall provide notice of these Rulings to the parties forthwith. Plaintiff to submit a straightforward Amended Judgment.

LENIORS v. PACIFIC GAS & ELECTRIC Co.

22CV46442

PLAINTIFFS' MOTION FOR RECONSIDERATION OF ORDER SUSTAINING DEMURRER WITHOUT LEAVE TO AMEND

This matter was first filed on November 23, 2022, as a Verified Complaint and Ex Parte Application for Temporary Restraining Order (TRO). Plaintiffs sought to enjoin defendant from terminating their electric service. The TRO was granted. Defendant filed its first Demurrer on June 20, 2023. This case involves a dispute between utility customers and the utility company concerning an unpaid bill of \$126,691.66.

In a detailed six-page ruling, the Court sustained the demurrer and identified the aspects it believed were outside the California Public Utility Commission's (CPUC) exclusive jurisdiction, namely slander, intentional infliction of emotional distress, and spoliation. The Court provided details on the elements of these causes of action and the necessary averments for them to proceed. It granted thirty (30) days leave to amend.

On September 1, 2023, the First Amended Complaint was filed. Defendant demurred. The Court focused on the slander, intentional infliction of emotional distress, and spoliation causes of action, noting that the plaintiffs had chosen not to provide the necessary additional factual details on the identified causes of action. The Court sustained the demurrer, granting another 30 days leave to amend.

On January 8, 2024, a Second Amended Complaint ("SAC") was filed. Defendant again demurred. When ruling on this Demurrer the Court stated:

"[T]he court guided plaintiffs regarding the requirements for stating a cause of action that would remove the complaint from the California Public Utilities Commission (CPUC) exclusive authority for adjudication of customer disputes. Plaintiffs contend the causes of action for slander and intentional infliction of emotional distress achieve this goal.

Upon reviewing the SAC, plaintiffs introduced only two arguably substantive additions when compared to the earlier pleadings. In a three-paragraph amendment labeled "JURISDICTION" (set forth as section/paragraph 17) plaintiffs argue that their claims do not contravene "the commission." The additional language concludes "the civil court has jurisdiction." (SAC ¶17, pg. 8.) This is argument, not facts. Further, at ¶21 the amended language adds a damage element assertion - one plaintiff's facial nerve virus flared and was attributed to the stress of the billing dispute.

Plaintiffs' Request for Judicial Notice is GRANTED.